

Apprentices are also to be excluded from the scope of this block. In tea factory, only workers employed regularly and mainly on the factory side will be covered. Workers temporarily drawn from the plantation side are not to be included.

3.17.3.3 As in part-I, labour employed for generating electricity and producing coal gas, should be included in Part-II as well, if the plants are located within the factory premises and form an integral part of the registered unit under survey.

3.17.4. Information in this block is to be reported separately for the months specified under Col. 1. *However, information under Cols. 3 and 4 in respect of perennial industries will be reported for last month for each quarter viz. March, June, September and December. In the case of seasonal industries, the figures should relate to the months during which the production of main item is carried on. The seasonal industries are 1030, 10612, 1072, 10791, 10792, 10798, 11012, 12001 and 01632.*

3.17.5 Block 2: Col. 2: scheduled working days for workers: The number of scheduled working days to be recorded here should be derived from the workers point of view, i.e. the number of days on which the workers are required to work. This would be the number of days in the month minus rest days/weekly off-days and closed holidays enjoyed by the workers, irrespective of whether the factory worked on all the days of the month or not. In cases where the workers are allowed rest days by rotation and the number of rest days is different for different groups of workers, the minimum and maximum number of days (i.e. in range) worked by different groups of workers should be recorded. Under this column, **lock- out days and complete lay-off days are not to be taken into account**, as workers are not required to work for these days. The workers are not to be treated as scheduled to work in case of total strike but the workers will be treated as scheduled to work if the strike is partial. It may also be clarified that working days in Col. 2 of Bl. 2 are to be considered from workers point of view and not from the point of view of the factory. When the factory works for all the days in a month a range of minimum and maximum working days are to be reported under this column.

3.17.6 Block 2: Col. 3: number of man-days worked: In this column, the total number of man-days actually worked during the month is to be obtained by adding the number of workers attending in each shift over all the shifts worked on all working days during the calendar month. A worker attending for a part of the shift will be counted as having worked for the full shift. For example, 50 workers reported for duty in the morning but 5 remained on leave in the second part of the shift, the attendance for that day will be 50 and not 45. Further, there may be instances where, say, out of 26 working days in a month, 20 days are spent for repair and maintenance and the remaining six days for production. In such a case all the 26 days will be considered for Cols. 3 and 4.

3.17.7 Block 2: Col. 4: number of days lost due to absence: Absence is the failure of a worker to report for work when he is scheduled to work. A worker is to be considered as scheduled to work when the employer has work available for him and the worker is aware of it. A worker is to be treated as absent for purpose of absenteeism

statistics, even when he does not turn up for work after obtaining prior permission and includes absence with or without pay. Any worker who reports for duty even for a part of the day or shift should not be counted among absentees. Absence of a worker on account of strikes or lock out or lay off, weekly rest and suspension is not to be considered as absence for purpose of statistics of absenteeism in this column. A remark explaining reason for high absenteeism should be recorded. It is necessary to examine that the total of Cols. 3 & 4 falls between the minimum and maximum limits of man-days scheduled to work for each month for which the information is required.

3.17.8 Block 2: Col. 5 and 6: number of workers in employment on 1st day and last day of the month: Information in these columns will be obtained from attendance register (s) maintained by the factory, the total number of workers who were in employment on the 1st day and the last day of the month is to be recorded under these columns. A worker is considered to be in employment, when his name appears in the rolls of factory. In case the first or last day falls on scheduled holiday, the number in employment at the close of previous working day should be treated as the number of workers in employment on the closed day. A worker who is absent without leave should be deemed to be in employment till his name is struck off from the rolls. While recording workers in employment as on the first day and on last day of the month accession and separation on first on these two days would be taken into account. Separation occurring after working on the day would be included in separation for the next day.

3.17.9 Block 2: Col. 7: accessions: The total number of workers added to the employment during each month, whether new or re-employed or transferred from other establishment or units under the same management, is to be recorded under this column. Inter-departmental transfers within the same establishment except where a worker is transferred from badli to regular, should, however, be ignored.

3.17.10 Block 2: Col. 8 & 9: separations: The number of workers who left the establishment during the month due to death or retirement will be entered in Col. 8 and due to other reasons in Col. 9. Workers on paid or unpaid leave (for sickness, etc.) with the approval of the employer should not be taken under separation until such time as it is definitely known that such persons will not return to work. At that time, their separation should be recorded as due to death or retirement or other causes as the case may be. Interdepartmental transfer within the same establishment should invariably be ignored.

3.17.11 Block 2: Col. 8: death or retirement: The total number of workers who died or retired during the month should be entered under Col. 8.

3.17.12 Block 2: Col. 9: other causes: Separations other than those due to death or retirement should be reported under Col. 9. These include terminations initiated by workers because of such reasons as acceptance of job elsewhere, dissatisfaction, marriage, maternity, ill health, etc. Termination of employment initiated by management for such reasons as workers incompetence, violation of rules, dishonesty, in-subordination, laziness, habitual absenteeism, unauthorized absence or inability to meet the organizations physical standards and include transfer to other establishments or units

even if under the same management. Retrenchment as a result of rationalization or modernization or any other cause is to be included.

3.17.13 Major records to be consulted for filling Part II Schedule:

- Muster Roll,
- Attendance register,
- Payment register,
- Leave register,
- PF register,
- ESI register,
- Gratuity register,
- Pension register,
- Ledger.

3.18 General Remarks Regarding Filling up of ASI Schedules

3.18.0. The ASI work involves a number of stages. There are some general procedural aspects.

A separate return for each registered factory should be submitted as a rule. In following this, the aspects to be taken note of are:

- a) Unless ownership has changed during the reference year, only one return is to be compiled for one factory.
- b) If a part of a registered factory has been operated by the owner and another part by the occupier the total manufacturing activities of both the owner and the occupier should be duly recorded in one return.
- c) If the factory as a whole has been rented out, the return for the factory may be filled from the occupier's point of view.
- d) If for a factory, which is served with notice, is found that its products are meant for training of inmates and has no sale value and are produced as a product during training, the facts may be reported to the Statistics Authority and data need not be collected. This is normally applicable to Training Centers and Jails which are registered as factories. Further, workshop in jails registered under factories Act should be canvassed for ASI only when the products of the workshop are meant for sale. In case the products are not sold but are incidental to training to the convicts engaged at the workshop, such a workshop is outside the purviews of ASI.

3.19 Treatment of Head Office

3.19.0 Information in respect of the assets, employment and expenses of the head office of a factory will be reported in the following manner:

ASI Schedule

- (i) If the head office is controlling only one factory and is situated in the same town where the factory is situated or outside but within the same State, the information of the head office will be included in the factory return;
- (ii) If the head office is controlling more than one factory and is situated in the same State, data in respect of head office will be included in any one of the factories;
- (iii) If the head office controls a number of factories situated in different States, the information of the head office will be accounted for in the return of the factory situated in the same State;
- (iv) If the head office is situated outside the State, where factories were located, its assets, employment and expenditure are not to be included in the return. In no case allocation of the head office information will be made among the individual units;
- (v) If the head office controls one or more factories and also commercial mining or quarrying establishments, the head office data should be restricted to the manufacturing units only as the head office is expected to maintain separate accounts for manufacturing, trading and other activities;
- (vi) In case the head office distribute its expenditure over all the units under its control and shows them against individual units accounts, the amount relating to the factory concerned will be reported in block F.

3.20 Accounting Year

3.20.0 Information furnished in all the blocks of the ASI should relate to the accounting year of the factory closing on any day between 1st April and 31st March. If a factory has been de-registered after some months of operation during the accounting year the data to be collected will relate to the period for which it worked as a registered unit even though the factory has continued its production as a de-registered unit thereafter. In case the unit has accounts covering period more than 12 months (say, for 18 months), then the months corresponding to the period 1st April to 31st March will be considered.

Chapter Four

Operational and Organisational Aspects of Field Work

4.0 The entire field work pertaining to central sample of Annual Survey of Industries is undertaken by the Field Operations Division (FOD) of NSO. The ASI fieldwork is to be done by the Senior Statistical Officers (S.S.Os). While the headquarters of FOD is responsible for the overall planning and execution of field work, control and monitoring of the progress at all India level, the Deputy Director Generals of the six Zonal Offices co-ordinate and monitor the progress in their jurisdiction. Planning and execution of the field work in the jurisdiction of Regional Office is the responsibility of the Regional Head.

4.0.1 From ASI 2012-13, when the web portal was introduced, the process of data collection, compilation and dissemination for ASI has become web-based.

4.1 Operational Aspects

4.1.1 Training

4.1.1.1 There is an in-built system of providing training to all Senior Statistical Officers (S.S.Os) in the technique of conducting ASI work. Zonal training centres set up at Jaipur, Lucknow, Nagpur, Bangalore, Kolkata and Guwahati, each headed by a Deputy Director General, are responsible for providing training on ASI to S.S.Os. In these centres, special intensive courses of training on ASI are organised, in addition to other regular training programmes. This is apart from the training imparted to the S.S.Os in the Sub-Regional and Regional Offices before entrusting them with the actual field work.

4.1.1.2 *Issue of Notices:* The work relating to issue of Notices to census sector should be taken up first. The issue of Notices to the units under sample sector should be taken up immediately thereafter.

4.1.1.3 Before issue of Notices, it should be ensured that the address of SRO/RO is properly given in the Notice in the space provided for it. The Notices may be sent by Registered Post with acknowledgement due. **The Notices are not to be sent by Courier Services.**

4.1.1.4 Non-operative factories in the frame, if any, should be identified and excluded from gross allotment for arriving at net allotment. As per the statutory requirement, a registered notice along with blank form and instructions is issued to the owner of each factory under coverage directing him to submit the ASI return by the due date. The notices should not be issued to the factory appearing in the list of non-operative units.

4.1.1.5 Non-operative factories are those which are not operating, but continue to be in the list of CIF as well as in ASI frame on account of not being deregistered by C.I.F. Thus non-operative units will mainly fall under (1) those which do not exist on site (i.e., having no fixed assets), (2) units continuously remained closed for the past 3 years.

Operational and Organisational Aspects of Fieldwork

4.1.1.6 The Notices to all factories of the region are issued from the concerned field offices of FOD. While issuing Notices to the different factories, it is to be ensured that address of the sub-regional office/Regional Office is given at the specified place in the notice for all factories in the jurisdiction of the concerned sub-region, so as to enable the factory owners to send filled-in-returns and related correspondence directly to the sub-regional office/Regional Office.

4.1.1.7 The Notice is to be issued to the owner by name under registered post with acknowledgement due. The name of the owner may be obtained from the office copies of the earlier ASI return or from the operation register. In case his name is not available, the notice is to be issued by designation (Owner).

4.1.1.8 After issue of Notices, it is the responsibility of each S.S.O. at SRO/NSRO to ensure that the postal acknowledgement is received back in respect of each of the Notice issued.

4.1.1.9 The postal acknowledgement receipt duly signed by the addressee is to be kept under the safe custody of the concerned S.S.Os. This is an essential document for launching prosecution, if any, against defaulters. In case postal acknowledgement receipt is not received by the office within a week from the date of issue of the Notices, the S.S.Os should immediately approach the Post-Master or the S.Os of Post Offices to obtain a duplicate acknowledgement receipt as a token of serving of ASI Notice. While making such a reference to the postal authorities, it will be preferable to give in a single communication the full details of all the addresses, for which the acknowledgements have not been received.

4.1.1.10 Even if the postal acknowledgement receipt has been received in the office, efforts should be made to obtain the printed acknowledgement receipts duly signed by the owner of the factory by reminders or otherwise.

4.1.1.11 If an undelivered Notice is returned to the office, the reasons for non-delivery of the notice should be obtained from the postal authorities. Remarks such as refusal, etc. on the cover by the postal authorities are helpful in preparing the case for prosecution.

4.1.1.12 In the case of Notices returned due to incorrect address, action should be taken to get them re-issued to the correct address, or served personally by the S.S.Os by visiting the correct address. If such a delivery is not possible due to reasons such as the factory is not in existence, such cases must be referred for deletion after site visits by the S.S.Os and checking the position with the CIF (State).

4.1.1.13 However, in cases where the factory is in existence but the concerned person is not there to receive the Notice, the Notice may be pasted in the factory premises in the presence of two independent witnesses.

4.1.1.14 One month after issue of notice, reminder is to be given to the factory to facilitate getting a reply from them regarding their preparedness to submit the return within a reasonable time.

4.1.1.15 Extension of time for submission of the return can be granted, if deemed fit, by the Regional Head when asked for in writing by the factory.

4.2 Allotment

4.2.1 ASI is a time-bound survey. It is therefore extremely important to complete the entire fieldwork in the prescribed timeframe. For this purpose allotment is to be made to the available number of S.S.Os in all the sub-regional offices/notional sub-regional offices at Regional Headquarters. In allotting the ASI factories among the S.S.Os, it is to be ensured that the total workload (including that of Agricultural Statistics work) per S.S.Os is as balanced and equitable as possible. This should be done after a proper assessment of size, location, geographical contiguity and the experience of the S.S.Os to the extent possible. It is also envisaged that at the time of allotting factories to the S.S.Os, the jurisdiction and factories be rotated among the S.S.Os in each SRO, as per the work allocation instructions issued by the Headquarters.

4.3 Completion

4.3.1 Appropriate steps should be taken to ensure that the completion is spread over the entire survey period, as evenly as possible, not only to avoid undue pressure or cluttering in the later period but also to undertake other important activities such as scrutiny, dispatch etc. in an effective manner. In order to achieve this, each Senior Statistical Officer in that region should draw up and adhere to a suitable tour programme for each month, in consultation with the S.S.Os, in-charge or next higher authority in that region. S.S.Os should then, as far as practicable, contact the factories over telephone to ascertain the position of finalization of the records for the ASI return and depending on the requirement visit the concerned management for verification/compilation of the return as per the programme.

4.3.2 The returns so verified/compiled should invariably be scrutinized thoroughly and the scrutiny reports for the respective parts of the return are appended. **A factory would be treated as completed only when the return is finally submitted after scrutiny.**

4.4 Inspection

4.4.1 Inspection plays a very important role in reducing non-sampling errors. To have quality in ASI data, the fieldwork needs to be inspected by officers at different levels. In doing so, the norms laid down by the Headquarters must be strictly adhered to. These inspections may be concurrent or non-concurrent. However, non-concurrent inspection is to be normally preferred and conducted. Immediately after conducting an inspection, an inspection note is to be drawn on the prescribed format and handed over to the officer concerned on next working day. It will be desirable to pinpoint in the inspection note, the mistakes noticed and remedial measures suggested avoiding the recurrence of such errors in future. The findings of the inspections of different supervisory officers should also be discussed in the monthly meeting for refining the understanding of concept of the S.S.Os on ASI.

4.5 Scrutiny

4.5.1 Scrutiny of the filled-in-returns is another important measure for maintaining quality of ASI data. It also facilitates taking immediate steps to apprise the concerned field worker about the mistakes committed by him. Therefore, the scrutiny work is to be taken up immediately after the S.S.O. has submitted the schedules to other S.S.O. (Scrutiniser). He/She should scrutinise thoroughly all the returns submitted in accordance with the scrutiny instructions issued by the Headquarters from time to time. The scrutiniser S.S.O. is required to indicate the scrutiny points including arithmetical check, identification details/discrepancies noticed in the specified place on the portal. The compiler S.S.Os are required to furnish the clarifications on the scrutiny points to correct the return promptly. On receipt of the clarifications or corrected return, the concerned officers should examine the return & then pass it on to the higher level.

4.5.2 All the errors or mistakes observed during the course of scrutiny in a month should be discussed in the monthly meeting for the benefit of all the field staffs. All Group A officers are also required to super scrutinise at least the prescribed number of returns pertaining to their region in an ASI. The errors and mistakes observed during the course of scrutiny/inspection may be analyzed and documented by the scrutiniser S.S.Os of SRO / NSRO and a monthly feed-back be sent to Zonal Office by the Regional Office, who will arrange to issue consolidated feed-back reports based on scrutiny, inspection etc.

4.5.3 All Regional Heads have to ensure that all schedules are thoroughly scrutinized before dispatch to IS Wing, DQAD. In order to improve the effectiveness of scrutiny in the context of ensuring better reliability and accuracy of data, Headquarters and Zonal Offices have been actively involved in the super scrutiny of ASI returns.

4.5.4 All the Regional Offices are required to send the top most return (in terms of GVA) in the 1st fortnight of every month to the Headquarter Office, New Delhi for super scrutiny. The next top most return (in terms of GVA) in 1st fortnight will be super scrutinized at the concerned Zonal Office. In the 2nd fortnight, all the Regional Offices are required to send two top most returns (in terms of GVA) for super scrutiny to the concerned Zonal Offices. The Regional Office will send copies (not originals) of the returns, balance sheet, P&L Account, Schedules and working sheets to the concerned offices accordingly. For expeditious completion of the process of scrutiny and updation, the concerned offices shall correspond with each other through e-mail / fax / speed post. It may be ensured that the returns to be scrutinized by Headquarters/ZO, are completed and scrutinized on priority and forwarded to Headquarters/ZO immediately. The original returns after the completion of the scrutiny process and updation, where necessary, will have to be dispatched by the concerned ROs to IS Wing, DQAD.

4.5.5 In addition to the above, the Regional Heads may take steps to scrutinize top two returns (in terms of GVA) of each charge at the NSROs/SROs under their jurisdiction not covered as above.

4.6 Feedback Reports

4.6.1 The Regional Office should arrange to consolidate the findings of inspection, scrutiny and super scrutiny notes and send quarterly feedback reports to ZOs in first week of the succeeding month. The Zonal Office would consolidate the errors / mistakes detected through the process of scrutiny done at SROs / ROs & ZOs and circulate quarterly feedback report to all ROs by 15th of the succeeding month for the use of staff engaged in ASI. Soft copy of the report may be sent to the Headquarters office by 15th of the month following each quarter. The Headquarters will examine the reports and circulate important points to all the field offices.

4.7 Dispatch of ASI returns to FOD offices/Tabulating Agency

4.7.0 The following time schedule is to be adhered to for dispatch of the ASI returns

4.7.1 In the ASI Web Portal, the following work-flow is being followed regarding allocation, compilation and submission of ASI returns at various levels:

RO/SRO Head (allocates) → Compiler (despatches) → Factory (compiles/submits) → Compiler (compiles/submits) → Peer Scrutinizer → SRO Head (scrutinizes) → RO (scrutinizes) → Send to CSO/Super scrutiny.

4.7.1.1 In this context, the following points may be noted:

- The scanned copies of the balance sheet and P&L account etc, if any, may be uploaded to the ASI Web Portal by the Compiler.
- Schedules referred back, at any stage, will go directly to the Compiler who had filled-in the schedule.
- Modifications in the data, if any, required to be implemented in the already filled-in schedule can only be done by the Compiler who had filled-in the schedule.
- The identification of schedules meant for 'super scrutiny' and 'send to CSO' will be done by the system itself periodically.
- In the web portal, ROs only need to navigate to 'Schedule Activities → Send to CSO' for despatching the schedule to IS Wing, DQAD and 'Schedule Activities → Send for Super Scrutiny' to send the schedules to HQ/concerned ZO for super-scrutiny.

4.7.2. With the ASI Web Portal, there is no need, either for acknowledgement receipt from IS Wing, DQAD or dispatching ASI Part II to Labour Bureau. The dashboards reflect the receipt position in real time. Also, Labour Bureau is being provided the facility for downloading the relevant ASI data (Blocks A, B and E of Part-I and Part-II) by themselves.

4.7.3 **Schedule dispatch No.:** With a view to reconciling the dispatch of filled -in schedule by FOD field offices vis-à-vis receipt of the same by IS Wing, DQAD, a unique dispatch number is to be reported by the field staff of FOD both in Part I & Part II.

4.7.4 Queries received from IS Wing, DQAD are to be promptly replied to by the field staff through the Regional Head in the regional offices who should ensure that the replies to the queries are proper and to the point.

4.8 Prosecution

4.8.0 The Annual Survey of Industries being statutory and the factory owners being obliged to submit the ASI return, it is essential that legal action is initiated in respect of the units which don't submit the ASI return by the target date. For this purpose, the list of the defaulting units should be sent to the Statistics Officer immediately after the survey is over. The Show Cause Notice should be filled in separately for each defaulting unit and sent along with the list for signature by Deputy Director General and Statistics Officer.

4.8.1 When the prosecution proceedings are to be initiated, the following guidelines shall be strictly followed:

- (i) The Show Cause Notice shall be sent by Registered Post with AD and office copy shall be kept in files with ROs/SROs.
- (ii) It shall be correctly addressed to Owner/Proprietor/Occupier.
- (iii) Every care shall be taken for filling the correct dates of issue of notice, due date for receipt of Return as per notice etc.
- (iv) In the Show-Cause Notice, due date shall be taken as the date on 30th day after the date of receipt of the notice by the factory.
- (v) In case any Show Cause Notice is returned undelivered to the sender, attempt shall be made to re-serve the notice to the correct address and correct owner. The Chief Inspector of Factories or appropriate Licensing Authority may be contacted for correct name of owner & address etc. wherever necessary.
- (vi) In case of non-receipt of acknowledgement of registered post, the matter shall be referred to concerned Post Master immediately and duplicate receipt/certificate of delivery of notice/reminder/Show-Cause Notice, as the case may be, needs to be obtained. This is very much required for the sanction of prosecution.
- (vii) For each unit to whom Show-Cause Notice is issued, a separate file shall be opened which will be needed at Office of Statistics Officer for sanction of prosecution order etc. It shall be ensured that all the papers including acknowledgement receipts of original and Show Cause Notice are available in each file.

- (viii) If neither the ASI return nor any reply for extension of time is received by the concerned SRO/NSRO after the due date mentioned in the Show-Cause Notice, the case file together with complete documents shall be sent immediately to Office of Statistics Officer for further legal proceedings to be started by RO.
- (ix) Before sending these files to concerned Statistics Officer, the particulars of the factory proposed for prosecution may be furnished in the prescribed proforma and RO may examine each case thoroughly to ensure that all the relevant papers are available in each file including acknowledgement receipt of original Notice and Show Cause Notice.
- (x) Cases of closed/non-existent units need thorough examination before issuing of Show-Cause Notice/sending the proposal for prosecution to S.O.

4.8.2 A monthly statement on issue of Show-Cause Notice giving details of factories SRO/NSRO-wise for the region as a whole in the prescribed format shall be prepared and sent to concerned S.O. every month.

4.9 Follow up action after sanctioning the prosecution

4.9.1 After sanctioning the prosecution, the S.O. requests the State Legal Remembrance to appoint a public prosecutor to file and plead the case on behalf of the Government and send copies of the orders to him and to Regional Head. The following steps should immediately be taken by the RO Head:

- (i) Get the appointment of the counsel expedited through the Legal Remembrance of the State and inform the position to S.O.
- (ii) Contact the Counsel immediately on his appointment, and brief him on the case.
- (iii) The S.O. on the filing of the case in the Court will send regular periodical monthly/quarterly reports depending on the hearings in the case in the Court, till the case is decided.
- (iv) It should be ensured that on each day of hearing, FOD representative attends the Court without fail along with the Counsel and inform S.O. of day to day proceedings.
- (v) The S.O. to be informed about judgment of the Court, immediately after it is delivered, amount of penalty awarded along with a copy of the judgment.
- (vi) A register should be maintained to record various stages of prosecution of the factory, like date of submission of prosecution proposal to S.O., date of issue of Show-Cause Notice, date of receipt of sanction of prosecutions by S.O.,

Operational and Organisational Aspects of Fieldwork

efforts made to file the case, date of actual filing of the case, name of Court, name and address of the Counsel, dates of hearing, name of FOD representative attending the court, resume of proceeding of the case in the court date-wise, date of judgment, penalty awarded, date of receipt of Bill from counsel with amount of Bill, date of submission of the Bill to S.O. and date of payment to the Counsel.

4.9.2 As regards the payment of fees to the Government Counsel, it may be noted that this will be sanctioned by the Statistics Officer (S.O.) in accordance with the prevalent State Rules in this regard.

4.9.3 In cases where the Court rejects the case against the Government, intimation about this should first be given to S.O. and seek his advice as to whether any appeal is to be filed in the upper court.

4.10 Submission of the bills received from the Public Prosecutor/Counsel for sanction by S.O.

4.10.1 The bills should be carefully examined to ensure that the date(s) of attendance of Public Prosecutor in Court are duly certified by the Court concerned. The rates of fees and amount claimed for each item of work undertaken by the counsel are as per prescribed rates in the Manual of State/Central Government and are duly certified to that effect by such competent authority. On receipt of sanction from S.O., the payment may be made to the counsel under intimation to S.O.

ANNEXURES

ANNEXURE- I

By Hand/Regd. Post

**GOVERNMENT OF INDIA
MINISTRY OF STATISTICS & PROGRAMME IMPLEMENTATION
OFFICE OF THE DEPUTY DIRECTOR GENERAL/DIRECTOR & STATISTICS OFFICER
NATIONAL STATISTICAL OFFICE
(FIELD OPERATIONS DIVISION)**

To

The Owner/ Occupier,

Sub: Notice for submission of ASI return under the provisions of the Collection of Statistics Act, 2008 (7 of 2009) as amended in 2017 & Rules framed there under in 2011.

Dear Madam/Sir,

The undersigned has been appointed as the 'Statistics Officer' by the Government of India under Section 4 (1) of the Collection of Statistics Act, 2008 (7 of 2009) as amended in 2017 for conducting Annual Survey of Industries (ASI) for the financial year 2020-21 in _____ State.

2. In pursuance of the powers vested with the undersigned vide Sub-Section (a) of Section 5 of Collection of Statistics Act, 2008 (7 of 2009) & Rules framed there-under in 2011, a notice is hereby served upon you to furnish information in the schedule of enquiry(ASI return) through ASI web portal preferably in Balance Sheet mode to the person(s) authorized by the Statistics Officer in respect of your factory/ industrial concern, covering information for the financial year 2020-21. The responsibility for compiling the information in the ASI return lies with the concerned factory/industrial concern and the return shall be furnished **WITHIN ONE MONTH FROM THE DATE OF RECEIPT OF THIS NOTICE**. The link, user-id and password for filing the return is given below:

Link: http://115.124.119.15/ASI_Web/Scripts/Login.aspx

User-Id:

Password:

3. You shall furnish along with the return, a copy each of the balance sheet, profit & loss account, details of expenditure on employees, Director's report or any other legal document(s) pertaining to the operations of the factory/industrial concern to the officer(s) of the local office in support of the information furnished by you in the ASI return. You may retain a copy of the return for your record. The address for correspondence with Local Office is given below:

Name & Address of the Local Office:

[P.T.O]

4. As per Collection of Statistics Act 2008, it is obligatory on your part to furnish the information called for in the return within the prescribed time. In case of any difficulty in compilation of the return, you may seek the guidance of the office at the address given in Para 3. An authorized officer(s) may contact you before or after the submission of return by you for necessary clarification or verification of the particulars furnished. If there is any difficulty in submitting the return within the given time, a written request should be made to the undersigned specifying the circumstances for extension of time limit to avoid legal consequences.

5. If you come across any case of impersonation or of any person demanding illegal gratification or any favour either in cash or in kind, in connection with your submission of the return, you may furnish the details directly to the undersigned.

6. The Gazette Notification of Collection of Statistics Act, 2008 (7 of 2009), Rules framed there-under in 2011 and Collection of Statistics(Amendment) Act, 2017, along with ASI return and Instructions thereof can be accessed at the website of the Ministry of Statistics and Programme Implementation at www.mospi.gov.in (Home>Current Surveys>ASI 2020-21). The relevant extracts from the Collection of Statistics Act, 2008 (7 of 2009) is enclosed with this Notice for ready reference.

7. The information supplied by you in the return will be kept confidential.

8. The receipt of this Notice may be acknowledged through the printed Acknowledgement receipt enclosed herewith.

Yours faithfully,

(Name of the Statistics Officer)

Deputy Director General/Director/Joint Director & Statistics Officer

Ref. Nos: SRO/NSRO Code: _____; DSLNo. _____

Forwarded for compliance.

Place:

Date:

Signature:

Name & designation with office seal:

Acknowledgement Receipt

Ref. Nos: SRO/NSRO Code: _____; DSLNo. _____

I/We do hereby acknowledge the receipt of Notice under the provisions of Collection of Statistics Act, 2008 (No. 7 of 2009) and Rules framed there-under in 2011 from Statistics Officer, _____ vide letter number _____ dated _____ for compiling information in the ASI return within one month from the date of receipt of this Notice.

Place :

Date :

Signature of the Owner/Occupier of the factory/industrial concern:
Name & designation with office seal:

Extracts from the Collection of Statistics Act, 2008 (7 of 2009)

Power of Statistics officer to call for information or returns

5. The Statistics Officer may, for the purpose of collection of statistics on any specified subject in any geographical unit for which the said officer was appointed -

(a) Serve or cause to be served on any informant a notice in writing asking him to furnish the information specified under sub-section (5) of section 4 or cause a information schedule to be given to any informant for the purpose of its being filled up.

Right of access to records or documents

8. The statistics officer or any person authorised by him in writing in this behalf shall, for the purposes of collection of any statistics under this Act, have access to any relevant record or document in the possession of any informant required to furnish any information under this Act, and may enter at any reasonable time any premises where he believes such record or document is kept and may inspect or take copies of relevant records or documents or ask any question necessary for obtaining any information required to be furnished under this Act.

Offences and penalties

15. (1) Whoever, fails to produce any books of accounts, vouchers, documents or other business records or whoever neglects or refuses to fill in and supply the particulars required in any information schedule or return given or sent to him or whoever neglects or refuses to answer any question or inquiry addressed to him as may be required under or for the purposes of any provision of this Act and the rules made thereunder, shall be punishable with a fine which may extend to one thousand rupees or, in the case of a company, with a fine which may extend to five thousand rupees.

(2) The conviction of a person or company for an offence shall not relieve him or it of the obligations under sub-section (1) and if after the expiry of fourteen days from the date of conviction, he or it still fails to give the required particulars or continues to neglect or refuses to fill in and supply the particulars or to answer the question or inquiry, then he or it shall be punishable with a further fine which may extend to one thousand rupees or, in the case of a company, with a fine which may extend to five thousand rupees, for each day after the first during which the failure continues.

16. Whoever, wilfully makes any false or misleading statement or material omission in any information schedule or return filled in or supplied, or in answer to any question asked to him under this Act or the rules made there under, shall be punishable with simple imprisonment for a term which may extend to six months or with a fine which may extend to one thousand rupees or, in the case of a company, with a fine which may extend to five thousand rupees or with both.

17. Whoever, destroys, defaces, removes, or mutilates any information schedule, form, or other document containing particulars collected under this Act or requesting any such particulars, shall be punishable with simple imprisonment for a term which may extend to six months or with a fine which may extend to two thousand rupees or, in the case of a company with a fine which may extend to ten thousand rupees or with both.

18. Whoever, interferes with, hinders, or obstructs any employee in the exercise of any power or duty conferred by this act, shall be punishable with simple imprisonment for a term which may extend to six months or with a fine which may extend to two thousand rupees or, in the case of a company with a fine which may extend to ten thousand rupees or with both.

19. Whoever:-

- a. Acts in contravention of or fails to comply with any provision of this act for any requirement imposed under this Act, or
- b. Wilfully deceives or attempts to deceive any statistics officer or any agency or any employee thereof,

shall be punishable with simple imprisonment for a term which may extend to six months or with a fine which may extend to two thousand rupees for, in case of a company, with a fine which may extend to ten thousand rupees or with both.

Annexure-II

ASI Frame

AII.1 Availability of a complete and up-to-date frame of all the eligible units is an essential pre-requisite for any large scale sample survey. The ASI covers units registered under various Acts/Agency and the lists available with them are not always readily usable as a frame, the preparation, maintenance and updation of the frame constitute an important aspect of ASI operations. The ASI Frame is updated every year through ASI Web Portal.

AII.2 The Regional Offices at the State Headquarters or in the location where the office of Chief Inspector of Factories (CIF) is located is to organise the work relating to preparation/revision of ASI frame in respective States/UTs. Concerned field offices revise/update and add new units to the frame for the state under their jurisdiction online through the ASI Web Portal.

AII.3 The stages involved in revision of ASI Frame are, generally, (i) obtaining complete list of registered factories from CIF up to the end of a financial year of ASI and newly registered factories during that financial year, and (ii) obtaining preliminary information from the regions regarding deletion of factories.

AII.4 List of Biri & Cigar Establishments: Separate list of Biri & Cigar are to be prepared for Biri & Cigar Establishments on the lines of instructions relating to factory sector. In respect of these units the CIF list of factories is to be supplemented, without any duplication, if such lists of units are available over and above the units registered under Biri & Cigar Workers (Condition of Employment) Act 1966. Under the provisions of this Act, there is no criterion regarding the number of minimum workers required for registration, as in the case of Section 2m (i) and 2m (ii) of Factories Act 1948. For the purpose of frame, only those establishments, which are employing 10 or more workers with power or 20 or more without power, are to be entered in the frame in consonance with the Section 2m(i) & 2m(ii) of Factories Act. The above definition is slightly modified due to the amendment of the Factories Act, 1948 for the State of Maharashtra and Rajasthan, as below, which is applicable from ASI 2015-16 onwards:

“Section 2m (i) has been modified, i.e., from *10 or more workers with power* to *20 or more workers with power* and also Section 2m (ii), i.e., from *20 or more workers without power* to *40 or more workers without power*.”

Persons who are ‘home workers’ as per the Act are not to be included in ASI Frame.

While revising the Biri & Cigar frame, all the establishments not fulfilling the above criteria (i.e. 10 or more workers with power or 20 or more without power) are not to be included in the frame.

AII.5 As per the decision taken by the Standing Committee on Industrial Statistics (SCIS) the coverage of ASI may be extended beyond the purview of the Section 2m (i) and 2m (ii) of the Factories Act, 1948 and the Bidi & Cigar Workers (Conditions of Employment) Act, 1966. Accordingly, the units with 100 or more employees, not registered under Section 2m (i) and 2m (ii) of the Factories Act, 1948 but registered under any one of the 7 Acts in the Business Register of Establishments (BRE) prepared and maintained by the State Governments are also to be considered.

AII.6 **Updation of ASI Frame (2020-2021):** With the implementation of the ASI Web Portal, the entire work of ASI including updation of frame, selection of sample, collection and processing of data is being done online through the portal. ASI frame for a particular year can be updated in two ways (a) For the new units or for the existing unit not selected in the last survey, following information on ASI need to be collected and entered in the ASI web portal. A screen shot of the ASI frame from the ASI portal is given below:

The screenshot displays the 'ASI Frame' web portal interface. The form is titled 'ASI Frame' and contains various input fields for unit details. The fields are organized into two columns. The left column includes: Unit Name*, Address*, State* (dropdown), District Name* (dropdown), Place*, Pincode, Sector* (dropdown), NIC Code* (with a search button), Enter NIC Description*, Status Code* (dropdown), and Remarks. The right column includes: SRO/NSRO* (dropdown), CSO Id, PSL No, JR Code, PSU (checkbox), Scheme* (dropdown), Number of Employees*, IT Facility* (dropdown), Rural / Urban* (dropdown), and Registration No. At the bottom of the form are 'Save' and 'Cancel' buttons. A footer note states '* Marked fields are mandatory'. The browser window title is 'Welcome to CSO - ISW - Windows Internet Explorer' and the URL is 'http://164.100.42.68/ASIChanges/Scripts/transaction/FrameSubmission.aspx'.

(b) For the units selected in the last survey year (in this case 2020-21), relevant fields like Status Code, Frame NIC (4 digit), Employee (Total persons engaged), Address etc. of frame for a given year, say, ASI 2021-22 will be auto-updated dynamically based on the information collected during the last survey year.

Sample Design¹ and Estimation Procedure

AIII.1 As stated in Chapter One of the instructions, FOD, NSO collects the data for central sample units, and the data so collected are validated, processed and published by IS Wing, DQAD. For selection of central sample units, all the factories in the frame are divided into two categories, viz., Census Sector and Sample Sector.

AIII.2 **Census Sector:** Census Sector consists of the following units:

- a) All industrial units belonging to the nine less industrially developed states/ UT's viz. Arunachal Pradesh, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura, Ladakh and Andaman & Nicobar Islands.
- b) All industrial units with Frame NIC = 0893(Salt Extraction).
- c) For the States/ UTs other than those mentioned in (a),
 - (i) units having 75 or more employees from six States/UTs, namely, Jammu & Kashmir, Himachal Pradesh, Rajasthan, Bihar, Chhattisgarh and Kerala;
 - (ii) units having 50 or more employees from three States/UTs, namely, Chandigarh, Delhi and Puducherry;
 - (iii) units having 100 or more employees for rest of the States/UTs, not mentioned in (i) and (ii) above and;
 - (iv) all units covered under 'Joint Return' (JR), where JR should be allowed when the two or more units located in the same State/UT belonging to the same industry (3-digit level of NIC) under the same management. It may be noted that the principle of JR is applicable only before the selection of units before the survey and unit(s) belonging to the "Census Sector" will not be joint with unit(s) of "Sample Sector" (see paragraph AIII.3) at the field stage or all units belonging to the "Sample Sector" should not be joint among themselves at the field stage even if the conditions of JR are satisfied.
- d) After excluding the Census Sector units as defined in paragraphs a) and b) above, the strata will be formed at State × District × Sector × 3-digit of NIC-2008 level. Here, 'sector' is very broad economic activity group consisting of manufacturing, electricity generation activity and *bidi* producing activity. Thus, in short, sectors are (i) Bidi, (ii) Manufacturing and (iii) Electricity. All units belonging to the strata (i.e., formed on the basis of units in *State by District by Sector by 3-digit of NIC-08*) having less than or equal to 4 units are completely enumerated and are thus considered as 'census sector' units.

AIII.3 **Sample Sector** All the units not listed under census sector are covered in Sample sector.

- a) The factories, in each stratum, are arranged in order of their number of employees. The sample will be drawn circular systematically in the form of four independent sub-samples considering an overall sampling fraction, say, about 16% to 22%, depending

¹ This Sampling Design is based on the recommendation of the "Sub-Group of SCIS on Sampling Design of ASI" under the Chairmanship of Dr. G. C. Manna.